

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHELLE K DIAMOND,

Petitioner

VS.

LEE S DIAMOND,

Respondent

) Case Number: FDI-21-795339

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF ORDER SHORTENING TIME; REVIEW OF CUSTODY
AND VISITATION FOLLOWING RECEIPT OF CUSTODY EVALUATION; REQUEST FOR
ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
SEE ATTACHMENT 9; REQUEST FOR ORDER FOR CHANGE OF ORDER SHORTENING TIME;
REQUEST FOR ORDER FOR CHANGE OF ORDER SHORTENING TIME

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Michelle Diamond (Mother) and Respondent Lee Diamond (Father).
They share two minor children: Jonah Diamond (DOB: 12/10/14) and Micah Diamond (DOB:
01/27/18).
- 2) On March 5, 2026, Mother filed an ex parte application seeking modification of the child custody
and visitation orders, appointment of minor's counsel, and a Tier II evaluation. The Court issued
some interim orders and set the matter for hearing on an Order Shortening Time (OST) for March
13, 2026.
- 3) On March 13, 2026, the Court ordered the following relevant orders:

- a. Counsel shall meet and confer about whether the Court should appoint minor's counsel or whether the parties should participate in a comprehensive Child Custody Evaluation or Brief Focused Assessment.
 - b. The Court is not modifying any of the legal or physical custody orders made in this matter....
 - c. Counsel shall meet and confer to find dates to return to court within 10 to 20 days of the date of this order (March 13, 2025). Counsel shall file a joint status statement three days in advance of whatever review hearing date is agreed upon by the parties and counsel.
- 4) On April 21, 2025, a review hearing was held, and the Court declined to make any changes to legal or physical custody. The Court refined some of its prior orders and denied Mother's request for the appointment of minor's counsel (see Findings and Order After Hearing (FOAH) filed April 25, 2025). The Court set a further review hearing on June 25, 2025.
 - 5) On May 14, 2025, Father filed an ex parte application seeking modification of child custody and visitation orders. The Court denied Father's requests pending hearing on May 20, 2025.
 - 6) On May 20, 2025, the court set the matter for long-cause hearing on May 29, 2025. The Court confirmed the current child custody visitation orders made on April 21, 2025 (see FOAH filed April 25, 2025). The parties also stipulated to an evaluator to conduct the Brief Focused Assessment.
 - 7) On May 29, 2025, the Court issued an order appointing a child custody evaluator. In particular, the Court appointed Dr. Rhonda Lindsey to perform a full child custody evaluation. The Court ordered the costs split 50/50, but reserved jurisdiction over the reallocation of such costs. The matter was set for further review of child custody and visitation and status of the custody evaluation on July 18, 2025 at 1:45 p.m., Department 404.
 - 8) On June 18, 2025, Father filed another ex parte application seeking a change in custody and that the court grant approximately 20 specific orders related to custody and parenting time. The Court set Father's ex parte application for hearing combined with the July 18, 2025 hearing.
 - 9) On July 18, 2025, the Court heard the matter and issued comprehensive orders (see FOAH filed July 21, 2025). Ultimately, the Court set a review hearing on September 4, 2025 for review of parenting time and to check in on the status of the custody evaluation.

- 1 10) On September 4, 2025, the matter was heard, and the Court issued further orders (see FOAH filed
2 September 16, 2025). Ultimately, the court declined to change custody and continued the matter
3 to January 7, 2026 at 1:45 p.m., for status of the custody evaluation.
- 4 11) On December 5, 2025, the Court reassigned the matter to Department 403 and the January 7,
5 2026 hearing was moved to January 27, 2026 on the Court's own motion.
- 6 12) On January 20, 2026, the Court granted Mother's request to continue the January 27, 2026
7 hearing to March 19, 2026, as the custody evaluation had yet to be completed.
- 8 13) On February 24, 2026, Mother filed an ex parte application seeking an OST on a Request for
9 Order for Educational Decision making for 2026. The Court denied Mother's motion pending
10 regular hearing and the matter was set for readiness hearing on April 6, 2026.
- 11 14) On March 11, 2026, the Court granted Mother's request to continue the March 19, 2026 hearing
12 to April 23, 2026.
- 13 15) On April 6, 2026, the Court was informed that the child custody evaluation had been completed.
14 The Court advanced the April 23, 2026 hearing and the Court set all pending child custody and
15 visitation motions for long-cause on April 24, 2026, at 1:45 p.m.
- 16 16) On April 22, 2026, all pending child custody and visitation motions set for hearing on April 24,
17 2026 were continued to May 7, 2026, at 9:00 a.m. on the Court's own motion.

18 **B. Findings and Order**

- 19 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
20 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
21 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
22 child is the United States.
- 23 2) After review and consideration of the child custody evaluation – Dr. Rhonda Lindsey's Evidence
24 Code section 730 evaluation dated April 2, 2026 – the Court finds good cause to adopt the
25 recommendations as the order of the Court. In particular, the Court adopts all recommendations
26 set forth on pages 107-117, which are attached hereto and incorporated herein. Effective
27 immediately, these recommendations shall become the order of the Court.
- 28 3) The Court will prepare the Findings and Order After Hearing.
- 29



DECISION-MAKING / LEGAL CUSTODY, PARENTING PLAN, AND THERAPEUTIC RECOMMENDATIONS

Rhonda Lindsey, Psy.D. pursuant to an order by the California Superior Court, County of San Francisco, as well as ordered by Judge Anne Costin, performed a parenting plan evaluation in the matter of Michelle Diamond versus Lee Diamond (Superior Court Case Number: FDI-24-795339). The following recommendations are offered based on the findings of this parenting plan evaluation.

- I. Michelle and Lee are to have joint legal and physical custody of Jonah and Micah for all medical, dental, therapeutic, educational, and extracurricular activities. It is recommended that the parents be sanctioned to pay fines to the court for failing to cooperate with the following recommendations.
- II. Jonah and Micah are to have a 2-2-5-5 with the children being with Lee on Mondays and Tuesdays and with Michelle on Wednesdays and Thursdays, alternating weekends. They are to be exchanged outside of the parents' homes. Neither parent is to enter the other parent's home.
- III. After one year (12 months), once the parents have learned to cooperate regarding extracurricular activities, it is recommended that the children move to a week-on/week-off parenting time schedule with exchanges at school on Monday mornings. If there is no school, the exchanges are to occur at 9:00 a.m. It is important that the parenting plan be based on the children's needs, rather than simply allowing parents to have their separate activities for the children. Fewer transitions would help the boys settle into one home and decrease stress. The parents will need to cooperate with taking the boys to their scheduled activities and appointments.

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IV. Holiday and Vacation Schedule:

A. Thanksgiving:

1. Monday at 9:00 a.m. through Wednesday, 9:00 a.m., the children are to be with Father on odd-numbered years and with Mother on even-numbered years.
2. Wednesday 9:00 a.m. until Monday school drop-off, the children are to be with Father during even-numbered years and with Mother on odd-numbered years.

B. Winter Break:

1. Friday pick-up from school release until Saturday at 9:00 a.m., the children are to be in Mother's care during even-numbered years and in Father's care during odd-numbered years.
2. Saturday at 9:00 a.m. until school drop-off on Monday when school resumes, the children are to be in Mother's care during odd-numbered years and in Father's care during even-numbered years.

C. Spring Break:

1. Friday pick-up from school release until Wednesday at noon, the children are to be in Mother's care in odd-numbered years and in Father's care in even-numbered years.
2. Wednesday at noon until school drop-off the day school resumes, the children are to be in Mother's care in even-numbered years and in Father's care in odd-numbered years.

D. 3-Day Weekends: The children are to remain with the parent who has them for the weekend for the Monday holiday.

E. Jewish Holidays: Will include the evening before the holiday, beginning a school pick-up or 3:00 p.m. through the holiday during which the children are permitted to miss school. The children are to be returned to school or to the other parent the following day at 9:00 a.m.

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1. Rosh Hashanah: Mother shall have care of the children in even-numbered years, and Father shall have them in odd-numbered years.
 2. Yom Kippur: Father shall have care of the children in even-numbered years, and Mother shall have them in odd-numbered years.
 3. Passover:
 - a) First Night of Passover: In even-numbered years, Father will have care of the children on the first night of Passover, and Mother on odd-numbered years. In odd-numbered years, Mother will have care of the children the first night of Passover, and they will be with Father on even-numbered years.
 - b) Second Night of Passover: In even-numbered years, Mother will have care of the children the second night of Passover, and they will be with Father on odd-numbered years.
 - F. Halloween: Father shall have care of the children on odd-numbered years, and Mother will have care of the children on even-numbered years from school pick-up (or 3:00 p.m.) until the day after Halloween at school drop-off (or 9:00 a.m.).
 - G. Mother's Day/Father's Day: The children shall spend Mother's Day with Mother and Father's Day with Father from 9:00 a.m. until school drop-off the next day (or 9:00 a.m.)
 - H. Fourth of July: Father shall care of the children in odd-numbered years, and Mother shall have them in even-numbered years from 9:00 a.m. on July 3rd, continuing until 9:00 a.m. on July 5th.
 - I. Vacations: Michelle and Lee are to have two one-week vacations with the children, which they can take separately in 2026. In 2027 and beyond, they may use the vacation weeks as two separate weeks or as a single two-week period. The parents are to put their vacation requests in writing to the other parent at least two months in advance. They are to provide the flight itinerary and lodging details to the other parent two weeks in advance. Passports are to be kept up to date and transferred to the traveling parent two weeks in advance. Each parent is to have a copy of each child's passport.
- V. The children are not to call or have FaceTime with the distant parent on transition days. On other days, they may have one call with the distant parent for up to 10 minutes if the child asks. Otherwise, each parent is to facilitate a scheduled FaceTime call with

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the distant parent on Sunday at 5:00 p.m. during their 5-day parenting time. During holidays and vacations lasting one week or more, the children are to have two scheduled video chat calls with the distant parent. These calls are to be private between the child and the parent being called.

- VI. The parents are to replace parent coaching with Mr. Jed Purses with a Parenting Coordinator (PC) or a private judge for a minimum of 12 months. If the parents refuse to hire a PC or private judge, it is recommended that they be court-ordered to hire a Child Custody Recommending Counselor for the same duration and with the same goals. There can only be one change of provider within the 12-month period. The PC, or private judge, is to serve as the tie-breaker for any decision the parents cannot reach on their own. The PC of a private judge is to impose sanctions, including fines, for any refusal to cooperate or failure to make the recommended parenting changes. Recommended PCs include David Donner, Ph.D., Debra Wald, Esq., Steven Friedlander, Ph.D., or Sheryl B. Hausman, Ph.D. Private judges include Hon. James Bertoli, Hon. Victoria Wood, Hon. David Fink, and Hon. Charlotte Walter Woodland. The goals of the PC or private judge include:
- A. To help the parents shift from their complaints about each other and their ongoing feud to learn to become coordinated in their goals for the children and basic behavioral interventions. They are to learn to negotiate and make decisions together. If they cannot negotiate, the PC or judge will provide necessary recommendations or court orders.
 - B. Parents are to communicate via Our Family Wizard and are to respond to one another within 24 hours. Communications are to be business-like and void of any expressions of hostility.
 - C. The parents are to tell Jonah and Micah that they are working together to raise them. They are to stress to Jonah that his parents want him to get well and will work together to help him. Michelle and Lee are to apologize to the children for any negative things they have said about the other parent.
 - D. Michelle and Lee are to stop all conversations with the children about the divorce, co-parenting conflicts, and any details that are adult business. If the children ask questions, the parents are to state that this is adult business and not share any information with them other than that they are working together now.
 - E. Despite their lack of trust in the other parent, Michelle and Lee are to actively facilitate the children's relationship with the other parent by having a picture of the other parent in the children's bedroom, initiating calls, sending cards and presents

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for birthdays and holidays, and stressing the positive qualities of the other parent. Not doing so is putting their own grievances before their children's best interests.

- F. It is imperative that the parents greet each other at exchanges and at the children's events in front of the children. Not to do so will lead to sanctions. They are to avoid hostile tones in their emails and actively demonstrate an effort to cooperate and share information.
- G. The parents are to cooperate with Jonah's treating professionals and to administer prescribed medication. He has such severe symptoms that it is necessary to fully cooperate with the doctors' and therapists' recommendations. Parents can discuss treatment options and make decisions along with providers, but blatant noncompliance with medical and therapeutic treatment could lead to sanctions. Jonah is not to be given the authority to decide whether or not to take medication because he is only 11 years old, and his parents are to decide and administer it to him.
- H. The PC is to ensure both parents are in communication with treating providers and are working cooperatively and respectfully with them. Adherence to recommended therapeutic treatment is to be monitored.
- I. The parents are to hire a new pediatrician for Jonah so that the doctor has familiarity with both parents and is not biased against one or the other. The current pediatrician is highly aligned with Michelle and has stated that Jonah should not live with Lee, but she is not familiar with the entire family system and has obviously been influenced by Michelle against Lee.
- J. The parents are to work with the PC to negotiate consistent rules, such as how online and media content is monitored, what parental controls should be in place, and how children can contact a parent in an emergency. The Court has not allowed cell phones or smart watches at Lee's house because Michelle was contacting the boys excessively.
- K. If, after one year of attempts to work with the PC or judge, there is evidence that one or the other parent is failing to cooperate with efforts to negotiate or is not abiding by court orders, it is recommended that that parent be court-ordered to take more co-parenting classes and to another year of counseling to learn how to co-parent.

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- VII. Parenting changes to be made immediately and monitored by PC and treating counselors:
- A. Neither parent is to sleep with the children, and they are to stress that they are safe in their rooms at night, even if the child feels afraid. Rewards can be given if a child stays in his room all night.
 - B. Parents are to remove themselves from a child having a tantrum and allow them to soothe themselves. They are to stress that they will talk with the child when he is calm.
 - C. Parents are never to refuse to speak to the children or avoid interacting with them as a form of punishment because “silent treatment” is emotionally abusive and vague and confusing. Instead, parents should express their anger or frustration directly to their children and establish ground rules to address the problem. If a parent is feeling emotionally overwhelmed, they can tell the children they are going into their room for about 20 minutes to calm down and will be out later.
 - D. Lee and Michelle are to avoid making any negative statements about the other parent at any time. They are not to indulge the children with details about court involvement or their own conflicts with the other parent, even if the child asks. Instead, these parents are to tell the children that their mother and father are working together as a team to parent them, and if they have any adult business to resolve, it is not for the children to know. This statement of unity is to avoid placing the children in a loyalty bind and to alleviate their stress from knowing too much about adult conflicts. The parents can redirect the children to focus on their own behavior, academics, and activities rather than the parents’ business.
 - E. If the parents have different opinions on religion, food, politics, or other issues, and the children ask about that, the parents are to explain to the children that people have different perspectives, but at their house, these are the rules or the way of thinking, without saying anything about the other parent being wrong.
 - F. Parents are to greet each other briefly with civility at exchanges and events in front of the children with a simple hello or statement about something positive the children did. If there is any business to address, the parents are not to discuss it at exchanges; instead, they are to contact each other later to have that discussion privately. Not greeting the other parent is immature, rude, hostile, and creates tension for the children and erodes the co-parenting relationship. All displays of hostility or telling other parents to step back must end. That behavior is damaging the children.

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- G. Parents are not to show up at school drop-offs or pick-ups when it is not their parenting time.

Given these parents' past refusal to change their behavior, it is recommended that sanctions be imposed for noncompliance. They lack insight into their behavior or motivation to change. Therefore, if either parent fails to perform these actions, it is recommended that the court issue sanctions, including monetary payments or consider a temporary reduction in parenting time.

THERAPEUTIC PARENT AND CHILD RECOMMENDATIONS:

- I. It is recommended that the court order that each parent complete an online co-parenting class within two weeks of this evaluation report. Some recommended courses include Happy Heart Parenting, Start Together for Kids, or Courses Education Online School.
- II. Michelle and Lee are both recommended to be court-ordered to have a counselor who is specialty trained in high-conflict divorce for the duration of at least 16 sessions, meeting twice a month minimally. They are not to change counselors more than once during that 12-month period.
 - A. Recommended counselors for Michelle include Dene Carroll, L.C.S.W., Elizabeth Crenshaw, L.M.F.T., or Janella Street, Ph.D. Michelle's goals in counseling would be:
 1. To help her learn to separate from her children and to soothe her anxiety about their well-being with Lee. She is to work to decrease her dependency on the children to find other ways to meet her needs for intimacy or activities. The boys are growing older and developmentally need to differentiate and separate from her. She is to learn to promote this autonomy and independence, avoid excessive embraces, and have the boys sit in their own chairs. She is to avoid seeking excessive contact with the boys during their parenting time with their father.
 2. Michelle needs to learn Cognitive Behavioral Therapy techniques for her anxiety. If the treating therapist is not a specialist in this area, Michelle is to seek services at Pacific Anxiety Group, San Francisco Stress and Anxiety Center, or the Bay Area Center for Anxiety. If she does not learn these specific skills, she may continue to inadvertently provide accommodations that promote Jonah's dependency.

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3. Eliminate any parental alienating behaviors, such as excluding Lee's name as a contact on forms or failing to provide information to him about the children. Facilitate the children's close and meaningful relationship with their father by encouraging them to be with him and to inform their friends' parents that she approves of friends going to Lee's house.
 4. Michelle needs to learn to become assertive in her parenting to continue to impose appropriate limits for the children. She seems to cave in to Jonah's demands and allows him to dominate her, or he will throw a tantrum. She needs to learn to assert her parental authority with a more detached attitude about Jonah's reactions.
 5. The counselor needs to help Michelle learn what appropriate physical contact with a pre-teen boy is and to have her learn to avoid embracing Jonah in an excessive manner. It seems that she has a particular need to attend to Jonah and needs to learn to separate from him more. Michelle needs to balance her attention by spending focused time with Micah and detaching from making Jonah the family's focus.
- B. Recommended counselors for Lee include Jennifer Santos, L.M.F.T., Thomas Gallahan, L.M.F.T., and Judith Phillip-Sill, Ph.D. It is recommended that Lee have one more session with Niel Brown, L.C.S.W., and end that treatment in order to focus his therapeutic efforts on a counselor trained to help him learn to work cooperatively with Michelle. Lee's goals in counseling would be:
1. To learn that attempting to cooperate with Michelle and with treating professionals is the only way to be a good father to his children. His determination to function on his own and to reject help is only harming his children. This would mean he would not always get to do things his way and would need to be open to new information. His oppositional resistance stems from the notion that he knows better than anyone else, but this thinking is erroneous. Lee has held misguided ideas that have led the children to excessive worry about vaccines, medications, and professional treatment.
 2. Lee needs to examine his fears about health and safety for the children so that he does not cause them more anxiety due to his rigid thinking about diet and medicines. He needs to learn to be more flexible in his thinking and to be willing to acknowledge his anxiety and somatic concerns, which might be exaggerated.
 3. To help Lee learn social skills to come across to professionals, teachers, and Michelle with more respect, courtesy, and civility. He tends to become easily

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argumentative, not speak to people, glare, or exhibit noxious interpersonal behavior that can be corrected with skills training. He could review John Gottman's (Gottman.com) skills for couples' communication, which are applicable to all relationships, and especially necessary for his ongoing co-parenting relationship with Michelle.

4. Lee is to learn Anger Management Techniques to learn to self-soothe when he is upset to avoid lashing out. He is to learn to communicate assertively and to avoid any silent treatment or passive-aggressive, indirect expressions of revenge or grievance, and to, instead, directly communicate to resolve issues.

III. It is recommended to be court-ordered to family systems counseling for Jonah with a specialty-trained counselor for high-conflict families. Jonah is to have one more session, each with Raquel Buchanan, L.M.F.T., and Max Berlyant, Ph.D., to solidify gains and to end treatment, transition to the new court-ordered family counselor within one month. Jonah is to have a treatment team comprised of his current psychiatrist, physical/occupational therapists, and the new family therapist. He is not to have excessive providers, which would support a "sick child" identity. The only additional appropriate service is possibly an ABA in-home behavioral plan, as cited below. The parents are not to request copies of the family counselor's clinical notes, as this is not appropriate. Minor clients have a right to confidentiality with their counselor. Recommended family therapists include Kathy Sinsheimer, L.M.F.T., Ann Cerney, L.P.C.C., or Ph.D., L.M.F.T. The goals of family counseling would be:

1. To help Jonah learn CBT techniques for anxiety and possible panic disorder, and to learn to self-soothe without parental coaching.
2. To learn to assertively communicate his feelings.
3. The family therapist is to ensure that Jonah is having private video or phone calls with the distant parent, as stated previously.
4. To work with Jonah and each parent separately to directly express his anger and any unresolved feelings to improve his relationship.
5. Specifically, the family counselor is to ensure that Lee has stopped confiding in Jonah about his conflicts with Michelle, has stopped saying negative things about her, and is politely greeting his mother at exchanges. Jonah is to be given a safe space to directly tell his father how these behaviors have caused negative feelings towards his father, and Lee is to apologize and recognize the harm he has caused his children.

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6. The family counselor is to monitor for any parent alienating behavior by either parent to dissuade the child from having a close and meaningful relationship with the other parent. The family counselor is to assess and address Jonah's repeated statements that he will not walk until his mother has full custody, and to involve the mother to state that he will walk, and that his abilities and disabilities are not tied to the Court's decision about custody.
 7. To work to promote Jonah's independent functioning and emerging autonomy. The family counselor is to provide parent coaching for Michelle when needed to help her parent the boys in a manner that does not promote dependency on her and to use age-appropriate displays of affection.
 8. The parents are to assert appropriate generational boundaries and to make it clear to the children that they will work together to make rules as the bosses of their households.
 9. Jonah is to attend school every day and complete his work in class and his homework every day, and not be allowed to get away with avoiding his academic work. The family therapist can help the parents with a behavioral plan where the child has no privileges until his work is complete each day. His attendance and school compliance are not to depend on the FND symptoms. Regardless of his disabilities, Jonah is to be informed that he must go to school and do all of the work every day.
 10. Jonah's depression and anxiety are to be continuously assessed. His suicidal statements need to be taken seriously. Parents are to take Jonah to the emergency room if he says he sincerely feels like harming himself.
- IV. Stanford does not have a Functional Neurological Disorder (FND) program despite one being listed on their website. Jonah has been evaluated by the Stanford FND neurologist and referred to the Anxiety Clinic, which provides only the services of a psychiatrist. Jonah has never been treated by a clinic that specializes in FND. Both parents could benefit from more education about this disorder and from receiving coordinated guidance to help Jonah improve. Other treatment options include La Selva Group in Palo Alto and Bay Area Neuropsychiatry. These parents are to consider whether one of these treatment programs would be more helpful. If they decide to remain with Stanford, it is important that both parents consult with Jonah's treating psychiatrist, neurologist, and occupational/physical therapist to better understand this puzzling disorder and how they can work together to help Jonah.

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Michelle and Lee could consider exploring other treatment options for FND. They could consider using Applied Behavior Analysis (ABA) to determine the function of Jonah's target behaviors and create a behavioral plan for each home. Recommended ABA therapy services include Songbird Therapy, Butterfly Effects, or Interconnect Therapy.

It is recommended that both parents have at least some behavioral similarities in order to participate in a behavior modification program for Jonah. Michelle and Lee are to point out to Jonah that his parents are working together to help him get well. This statement is to help Jonah be relieved of the stress of being in the middle of his parents' conflicts. Even if Lee and Michelle disagree about Jonah's treatment, they are to highlight the commonalities they share and keep their conflict and differences out of the children's earshot. Michelle and Lee do not have to like each other or have a close relationship, but they do need to cooperate in some key ways for Jonah, who has severe disabilities.

- V. It is not recommended that Micah be in therapy at this time. He has not expressed needed goals in his current therapy, and it is not appropriate to have an 8-year-old boy in therapy just for therapy's sake. Any future therapist for Jonah would need to work with both parents from the onset.

Educational Recommendations:

Jonah is recommended to remain in the public school system, as private schools do not offer services for children with special needs. The parents need to consider the current school's recommendations regarding whether Jonah has mastered fifth-grade academics, and, if not, retain him at the current school for another year until his academic and functional performance has improved.

The parents must be firm about school attendance and not allow Jonah to come home for somatic complaints. He is not to miss school unless he is seriously ill or contagious. It is also imperative that these parents insist on compliance with classwork and homework. The parents are to leave Jonah at school for the entire day every day and not linger in the building if he protests attendance.

Jonah has not been compliant with academic work for 1.5 years now. He is at risk of academic failure in middle school without remediation in his study habits. The parents might need to hire a tutor, but they could withhold privileges until his work is complete and monitor that his work is completed each and every day. Enabling him by making excuses for his lack of compliance with the work will not help prepare him for high school or adult life.

Caution about not sharing this report with children:

Michelle and Lee are not to discuss this evaluation report with Micah or Jonah. They are not to show this report to them; it is for the parents and the Court. It would be highly inappropriate to share this information with the children and would ultimately cause them distress.